

STATE OF NEW YORK

6370--A

2025-2026 Regular Sessions

IN SENATE

March 11, 2025

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the transportation law, in relation to requiring the commissioner of transportation to submit a biennial twenty-year capital needs assessment report to the governor and the legislature

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 14 of the transportation law is amended by adding a
2 new subdivision 37 to read as follows:

3 37. On or before March thirty-first, two thousand twenty-seven, and by
4 March thirty-first of every second year thereafter, the commissioner
5 shall prepare and submit to the governor and the legislature a report
6 that provides a twenty-year overview of the physical condition, opera-
7 tional performance, and investment needs of the state's transportation
8 infrastructure.

9 (a) The report shall include all state-owned, operated, maintained, or
10 federally eligible transportation infrastructure assets including state
11 and municipal pavements, bridges, tunnels, transit systems, airports,
12 ports, and passenger and freight rail infrastructure.

13 (b) The report shall detail, by component, the physical condition and
14 operational performance of existing assets, the backlog of needs, resi-
15 lience needs to mitigate extreme weather events and facilitating the
16 deployment of all electric vehicles, and the estimated cost to bring the
17 detailed assets into a state of good repair. The report shall also esti-
18 mate future operation and maintenance needs for five-year, ten-year, and
19 twenty-year periods with respect to specified levels of service.

20 (c) The report shall further provide forecasted state and federal
21 resources over the twenty-year period, an assessment of the impact of
22 inflation on forecasted funding, a description of the department's asset

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 management practices and decision-making policies, measurable perform-
2 ance goals for pavements, bridges, and modal assets, an evaluation of
3 progress toward achieving these goals, and risk management strategies to
4 mitigate potential threats to the transportation system.

5 (d) Within sixty days of the report's submission, the legislature
6 shall hold at least one public hearing involving the commissioner;
7 representatives of the construction industry, including contractors and
8 material producers; labor organizations; chambers of commerce; and other
9 interested stakeholders. The hearing shall assess the report's findings
10 and impacts on the safety and the economic competitiveness of the state.

11 (e) The commissioner shall be responsible for submitting the report in
12 a searchable electronic format for public accessibility as well as prom-
13 inently posting on the department's website.

14 § 2. The provisions of section one of this act shall not relieve the
15 department of transportation of its existing responsibilities under
16 section 14 of the transportation law.

17 § 3. This act shall take effect immediately.